

LANDLORD TENANT
RESERVATION OF RIGHTS LETTER

DATE: _____

TO: _____

RE: Notification of intent to pursue or continue Summary Possession Action

Dear _____

This letter will acknowledge receipt of your rental payment on _____ in the amount of \$ _____.

On _____ you were served with notice requiring you to pay your past due rent and any past due fees. As a result of your breach of the lease agreement by your failure to pay in a timely fashion, your rental agreement has been terminated. Your payment does not resolve the breach and the landlord fully intends to pursue or continue an action for Summary Possession in the Justice of the Peace Court as a result of your breach of lease.

RESERVATION OF RIGHTS:

Your check (if applicable) will be deposited, and all funds received above will be applied to your outstanding balance. **Acceptance of the rent payment is with reservation of all rights and remedies available to the landlord or his agent under Title 25 Del. C. §5101 et seq, and does not constitute a waiver of any rights. Thus this acceptance of rent with reservation of rights does not constitute a renewal of the rental agreement, nor does it create a new rental agreement.**

Should you have any questions please do not hesitate to contact me.

Sincerely,

By signing this letter, I/we acknowledge receipt for all purposes under the Delaware Landlord Tenant Code.

Tenant

Date

Tenant

Date

**Disclosure of Information on Lead-Based Paint and Lead-Based Paint Hazards
(For Residential Lease)**

Property: _____ Lessor Name: _____

Lessor Instructions: Check the box indicating the age of your property and initial. If you checked either box 1 or 3, continue to complete the *Lessor's Disclosure* section below and sign this form at the bottom. If you checked box 2, sign below to complete this form.

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(Check one of the boxes to the right and initial here)

Year Dwelling Was Constructed:

- ☐ 1. was constructed prior to January 1, 1978
- ☐ 2. was constructed after January 1, 1978
- ☐ 3. uncertain as to when constructed

Lead Warning Statement - Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors must disclose the presence of known lead-based paint and/or lead-based paint hazards in the dwelling. Lessees must also receive a federally approved pamphlet on lead poisoning prevention.

Lessor's Disclosure – Unless box 2 is checked above, each Lessor is required to complete sections (a) and (b) by selecting an answer and then by initialing in each of these two sections (if more than one owner, all owners must select and initial)

(a) Presence of lead-based paint and/or lead-based paint hazards (CHECK ONE BOX BELOW AND INITIAL):

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Select answer and initial

☐ Known lead-based paint and/or lead-based paint hazards are present in the housing. (explain)

☐ Lessor has no knowledge of lead-based paint and/or lead-based paint hazards in the housing.

(b) Records and reports available to the Lessor. (CHECK ONE BOX AND INITIAL):

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Select answer and initial

☐ Lessor has provided the Lessee with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the housing. (list documents below):

☐ Lessor has no reports or records pertaining to lead-based paint and/or lead-based paint hazards in the housing.

Lessee's Acknowledgement – Unless box 2 is checked above, all Lessee(s) must initial **c, d, and e**

- (c)

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 Lessee(s) has read the Lead Warning Statement above.
- (d)

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 Lessee(s) has received copies of all information listed above.
- (e)

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 Lessee(s) has received the pamphlet *Protect Your Family From Lead In Your Home*.

Agent's Acknowledgement – Initial below

(f)

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 The Leasing Agent has informed the Lessor of the Lessor's obligation under 42 U.S.C. 4852(d), and the Lessor is aware of his/her responsibility to ensure compliance.

Certification of Accuracy – The following parties have reviewed the information above and certify, to the best of their knowledge, that the information provided by the signatory is true and accurate.

Lessor	Date
Leasee	Date
Agent	Date

Lessor	Date
Leasee	Date
Agent	Date